

Court No. - 21

Case :- WRIT - C No. - 16066 of 2023

Petitioner :- Vishnu Swaroop Gaur

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gopal Krishna

Counsel for Respondent :- C.S.C,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The instant petition has been filed challenging the recovery citations dated 29.6.2019 and 1.8.2022 issued by respondent no. 2 for recovery of electricity dues from the petitioner.

2. In the past, the petitioner had approached this Court by filing Writ Petition No. 25750 of 2019. In the said writ petition, he had challenged a recovery citation dated 26.9.2019, whereby the respondents had made a demand of Rs. 70,190/- from the petitioner towards arrears of electricity charges. The contention therein was that the electricity bill issued to the petitioner was incorrect. Consequently, this Court permitted the petitioner to raise the dispute before the respondents in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a further direction to the Executive Engineer to consider the matter regarding correction of electricity bill. Thereafter, the petitioner moved an application on 27.8.2019, annexing therewith copy of the order of this Court. In the said application, the petitioner only prayed for correction of the electricity bill, but did not specify reasons on basis of which he was seeking correction. The respondents thereafter issued another bill and on basis thereof, the impugned recovery certificate for a sum of rupees one lakh has been issued.

3. Learned counsel for the petitioner submits that the bill has not been corrected and therefore, the impugned recovery is wholly illegal.

4. As noted above, the petitioner in his objection has not pointed out any error in the bill so as to warrant correction of the same.

5. In such a view of the matter, we find no merit in the instant petition.

6. At this stage, learned counsel for the petitioner submits that the petitioner is ready to pay the amount in installments and the respondents be directed to restore the electric supply.

7. Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department, has no objection to the same.

8. Accordingly, and with consent of counsel for the parties, the instant petition is disposed of as follows:

(a) The petitioner shall deposit the entire amount in terms of the impugned recovery certificate in three equal monthly installments.

(b) The first installment will become due and payable on 31st May, 2023 and the next installment by the last date of the succeeding month and so on.

(c) In case of default, the instant order will stand discharged automatically and it shall become open to the respondent-Electricity Department to proceed further in the matter in accordance with law.

(d) It is further directed that after deposit of first installment, the respondents will restore the electric supply to the petitioner's premises and they will continue to supply electricity to him, provided the petitioner complies with the terms and conditions stipulated in the instant order and also pays monthly bills.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 12.5.2023/Jaideep/-